

HOUSE BILL NO. 595

INTRODUCED BY F. NAVE, K. SEEKINS-CROWE

A BILL FOR AN ACT ENTITLED: "AN ACT REQUIRING THE DEPARTMENT OF CORRECTIONS TO OFFER A MONTANA CORRECTIONAL EDUCATION PROGRAM FOR INMATES; REQUIRING THE CORRECTIONAL EDUCATION PROGRAM TO PROVIDE HIGH SCHOOL EQUIVALENCY AND ADULT BASIC EDUCATION PROGRAMS; PROVIDING QUALIFICATIONS FOR AN INSTRUCTOR OF THE HIGH SCHOOL EQUIVALENCY AND ADULT BASIC EDUCATION PROGRAMS; REQUIRING THE DEPARTMENT OF CORRECTIONS TO ADOPT CERTAIN POLICIES; AND PROVIDING AN EFFECTIVE DATE."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

NEW SECTION. Section 1. Montana correctional education program -- instructor qualifications.

(1) There is a Montana correctional education program within the department of corrections. The Montana correctional education program shall offer a program for inmates to participate in opportunities in the state prison to further their education, including but not limited to programs to attain a high school equivalency diploma and to participate in adult basic education.

(2) To be eligible to be an instructor for a high school equivalency diploma program or an adult basic education program in the state prison, a person:

- (a) must be 18 years of age or older;
- (b) must be of good moral character; and
- (c) shall provide proof that the person has at least one of the following qualifications:
 - (i) completion of an associate degree in any field;
 - (ii) completion of a bachelor's degree in any field;
 - (iii) a teaching certificate issued by another state; or
 - (iv) prior teaching experience, including prior military training and experience pursuant to 37-1-145.

(3) The department of corrections may not require that an instructor hold a Montana teacher or specialist certificate issued by the superintendent of public instruction.

1 (4) The department of corrections may adopt policies to determine which inmates are eligible to
2 participate in the Montana correctional education program.

4 NEW SECTION. Section 2. Codification instruction. [Section 1] is intended to be codified as an
5 integral part of Title 53, chapter 30, part 1, and the provisions of Title 53, chapter 30, part 1, apply to [section 1].

7 NEW SECTION. **Section 3. Effective date.** [This act] is effective July 1, 2025.

- END -